

Patna Industrial Area Development Authority, Regulations

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RULE PATNA-INDUSTRIAL-AREA-DEVELOPMENT-AUTHORITY-REGULATIONS of 1800

Published on 1 January 1800

Commenced on 1 January 1800

[This is the version of this document from 1 January 1800.]

[Note: The original publication document is not available and this content could not be verified.]

Patna Industrial Area Development Authority, Regulations

In exercise of powers conferred by Section 15 of the Bihar Industrial Area Development Authority Ordinance 1972, the Industrial Area Development Authority with the previous approval of the State Government of Bihar, hereby make the following Regulations:-

Chapter-1 General

1.

These Regulations may be called the Patna Industrial Area Development Authority Regulations.

2.

Definitions.

- In these Regulations unless the context otherwise requires-

(a)

The Ordinance means the Bihar Industrial Area Development Ordinance 1972.

(b)

Rules means the Bihar Industrial Area Development Area Rules 1972.

(c)

Section means a Section of Ordinance.

(d)

Authority means the Patna Industrial Area Development Authority.

(e)

Chairman means the Chairman of the Authority.

(f)

Meeting means a meeting of the Authority.

(g)

Member means a member constituting the Authority.

(h)

Managing Director means-Managing Director of the Authority who will function as Chief Executive of the Authority.

Chapter-II Conduct of Business of the Authority

3.

The members of the Authority shall meet for transaction of its business from time to time and shall so meet at least once in every three calendar months.

4.

The Chairman of the Authority can call a meeting whenever he thinks fit. A meeting may also be called on a written request by any member of the Authority.

5.

The meeting of the Authority shall ordinarily be held in the office of the Authority, but the Chairman may direct the meeting to be held at any other place.

A notice in writing specifying the date, time and place of the meeting will be served on each member at least a week before the date of the notice provided that the meeting may be held on shorter notice to transact business of an urgent nature.

The adjourned meeting may be held at such place, date and time as may be decided by the Chairman and no quorum will be necessary for an adjourned meeting.

6.

Three members entitled to vote at a meeting will constitute the quorum without which no business could be transacted at any such meeting.

7.

The Chairman, or, in his absence, any member elected by the member present at the meeting shall preside over the meeting.

8.

Decisions in the meeting of the Authority will be as far as possible taken on the basis of unanimity, but in case of difference of opinion among the members, decision shall be taken on the basis of majority of members. In the event of equality of votes, the Chairman will have a casting or second vote.

9.

Minutes of the proceedings of all meetings shall be recorded in book to be kept for the purpose and shall be signed by the Chairman of the meeting after the minutes have been confirmed in the subsequent meeting.

10.

The Authority may invite persons likely to render advice to the Authority with regard to business to be transacted by it, provided that such special invitees or co-opted members shall not have the right to vote at the meeting.

11.

The Authority may, from time to time, for the purposes of carrying out its duties and responsibilities under the Ordinance appoint a committee or committees consisting of its own members and refer to them such matters as the Authority may deem fit. Unless specially authorised by the Authority, the decisions of the committee will have to be approved in a meeting of the Authority.

12.

The powers and functions of such a committee or committees shall be such as may be determined by the Authority.
Chapter-III Powers and duties of Chairman and Managing Director.

13.

The Chairman will be the Head of the Authority and

(a)

The Chairman shall preside over the meetings of the Authority and guide its deliberations.

(b)

Will do all things necessary for the fulfilment of the objects for which the Authority was constituted.

(c)

The Chairman shall guide and supervise the functioning of the Authority and in that capacity will issue such instructions to the Managing Director, the Chief Executive of the Authority as are necessary for the implementation of the decision of the Authority.

(d)

The Authority may delegate to the Chairman such other powers as the Authority may deem fit.

Subject to the General control of the Authority, the Managing Director shall-

(a)

Organise and supervise the office of the Authority, maintain discipline and exercise such other powers with regard to establishment matters like appointment, promotion, disciplinary action, leave to staff etc. as may be delegated to them by the Authority.

(b)

Receive and expend, subject to budget provision, moneys on behalf of the Authority and maintain proper accounts, vouchers and receipts thereof.

(c)

Perform such other duties as may be specified by Authority on Chairman from time to time.

Chapter-IV

15.

The Authority will appoint a person to function as secretary of the Authority. His functions will include inter alia:-

(1)

Attending meetings of the Authority.

(2)

Preparing and keeping agenda of meeting and minutes of proceedings.

(3)

Complying with the directions of the Authority and ensure implementation of the decisions and instructions of the Authority, Chairman and Managing Director.

(4)

Sending of notices to members and other.

(5)

Complying with the many obligations under the Ordinance like maintenance of proper books and registers.

(6)

Filing the necessary returns with the State Government and other statutory authorities.

(7)

Organising and controlling the office staff, field staff and others.

Secretary will function under the directions and instructions of Authority, Chairman and the Managing Director, issued from time to time.

Chapter-V

16.

All moneys received by the Authority by way of fees, fines, charges, grants, loans etc. shall be credited to the Authority's Fund and all expenditure incurred by the Authority shall be paid out of the said fund.

17.

The Managing Director will operate the Fund of Authority and no money shall be paid from the funds of the Authority

except on an order to pay signed by the Managing Director.

Provided that Managing Director may delegate this power to any other officer of the Authority who may exercise this power under the general guidance and supervision of the Managing Director and subject to such financial limits and restrictions which may be laid down by the Managing Director.

18.

The Authority shall keep proper books of accounts with respect to:-

(a)

All sums of money and expenditure by the Authority and the matters in respect of which the receipt and expenditure take place.

(b)

All sales and goods by the Authority and

(c)

All assets and liabilities of the Authority.

19.

The books of account shall be open to be inspected by members of the Authority during office hours.

20.

The books of account shall be kept at the office of the Authority.

21.

Managing Director shall lay before the Authority within six months of the close of each financial year a profit and loss Account for the financial year of the company and a Balance Sheet made of at the end of the financial year.

22.

Every Balance Sheet and every Profit and Loss Account shall be approved by the Authority and after approval a copy of the Balance Sheet and the Profit and Loss Account shall be sent to the State Government together with report of the Authority with respect to the affairs of the Authority.

Chapter-VI Audit

24.

Every Balance Sheet and Profit and Loss Account shall be audited by one or more auditors to be appointed by the State Government Balance Sheet and Profit and Loss Account, and on every other document annexed to the Balance sheet or Profit and Loss account, which are laid before the Authority and the Report shall state whether, in his opinion and the best of his information and according to the explanations given to him, the said accounts give the information required by this Act in the manner so required and give a true and fair view-

(i)

In the case of the Balance Sheet, of the state of the Authority's affairs as at the end of its financial year, and

(ii)

In the case of the Profit and Loss for its financial year.

26.

The Auditor's Report shall also state:-

(a)

Whether he has obtained all the informations and explanations which to the best of his knowledge and belief were necessary for the purpose of his Audit.

(b)

Whether, in his opinion, proper books of account as required by law have been kept by the Authority so far as appears from his examination of those books, and proper returns adequate for the purposes of his audit have been received from branches not visited by him;

(c)

Whether the Authority's Balance Sheet and Profit and Loss Account dealt with by the Report are in agreement with the books of Account and returns.

Chapter-VII Establishment

27.

Subject to the appropriate provisions in the budget and also such prior approval of the State Government as required under the Rules, the Authority may create and make appointments to such posts which it considers necessary for the

proper performance of its duties and functions.

28.

The Authority or the Managing Director as the case may be exercise disciplinary control over its employees provided that in case of employees whose services have been obtained in loan or on deputation from the State Government or the Central Government the case shall be submitted to the State Government.

Chapter-VIII Civil Works

29.

In carrying out any engineering or other works in the discharge of its functions, the Authority will be guided as far as practicable by the provisions contained in the P.W.D. code as applicable to the State Government untill such time as specific guide lines are framed by the Authority itself.

Chapter-IX Constitution of Standing Committee

30.

The Authority may with the approval of the State Government constitute a Standing Committee of not more than 21 persons composed of one or more members of the Authority officers of the State Government representing the employees, and such other persons as may help in fulfilling the tasks entrusted to the Standing Committee.

(a)

To draw up plans for development of Industries and establish contacts with Major Industries for farming out orders to ancillary units.

(b)

To prepare a list of Industries which would be encouraged in order of priority to be developed in the Industrial Area.

(c)

To consider the problems related to the essential relationship between the parent and ancillaries industries viz. terms of sub-contracting method of pricing, mode of payment, quality control, Common facilities and technical guidance and such other problems and to recommend suitable remedial measures.

(d)

To assess requirements of parts, components etc. required by large industries and to endeavour for the establishment of such units in the area and draw a list of priorities in the establishment of such industries.

(e)

To review the progress of development work in the Industrial Areas.

(f)

To screen application received by the Local Officer, I/C of Industrial Area for allotment of factory space and loans and make recommendations to Government.

(g)

To process applications for approval and registration.

(h)

To lay down policies regarding pricing, and price preference and establishment of common facility services.

32.

The Authority may from time to time entrust such other functions to the Standing Committee as the Authority may deem fit.

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